



CRISTY SIM
FITNESS

INFORMED CONSENT & RELEASE OF LIABILITY

Personal Training — In-Person & Virtual Sessions

This Informed Consent & Release of Liability (the “Waiver”) is entered into between **Cristy Sim LLC**, 5900 Balcones Drive, Suite 100, Austin, TX 78731, USA (the “Company,” “Coach,” or “we”), and the client who signs below (the “Client” or “you”). This Waiver applies to all in-person and virtual training sessions provided by the Coach.

This Waiver is the separate release referenced in, and is incorporated by reference into, the **Personal Training & Body Recomposition Agreement**. Signing this Waiver is a condition of participation. If there is a direct conflict between the two documents regarding the assumption of physical risks or the release of liability, this Waiver controls to the extent permitted by law.

1. VOLUNTARY PARTICIPATION

The Client participates in training voluntarily and of the Client’s own free will. The Client confirms that they are physically able to exercise, or have obtained medical clearance to do so where appropriate, and that they may ask questions or stop participating at any time.

2. MEDICAL FITNESS AND DISCLOSURE

The Client is responsible for obtaining medical clearance when appropriate and for complying with all medical restrictions. Before and during the program, the Client agrees to disclose to the Coach any condition that may affect safe participation, including but not limited to:

- Heart, lung, blood-pressure, or circulatory conditions.
- Injuries, surgeries, joint or musculoskeletal limitations.
- Pregnancy, or any relevant medication or health changes.
- Allergies, dizziness, fainting, or any other relevant medical condition.

3. ASSUMPTION OF RISK

The Client understands that physical training and exercise involve inherent risks that reasonable care cannot eliminate. These risks include, but are not limited to, muscle strains and sprains, fractures, falls, cardiovascular events, aggravation of pre-existing conditions, serious injury, disability, and, in rare cases, death. The Client knowingly and voluntarily assumes all such inherent risks of participation.

4. CLIENT RESPONSIBILITIES DURING SESSIONS

- Follow the Coach’s reasonable instructions and use proper technique.
- Immediately communicate pain, dizziness, injury, unusual shortness of breath, or any warning sign.
- Stop exercising and seek local medical assistance whenever symptoms warrant it.
- Use appropriate clothing, footwear, and equipment, and comply with the rules of the gym or training facility.

5. RELEASE AND WAIVER OF LIABILITY

To the fullest extent permitted by law, the Client releases, waives, and discharges **Cristy Sim LLC** and **Cristy Sim** (together, the “Released Parties”) from any and all claims, demands, or causes of action arising from ordinary inherent risks of training or from the Client’s failure to follow reasonable instructions. This release does not apply to gross negligence, willful misconduct, or fraud, or to any liability that cannot legally be excluded, and it remains subject to all mandatory, non-waivable consumer and legal rights.

6. INDEMNIFICATION

To the extent permitted by law, the Client agrees to hold the Released Parties harmless from claims, losses, or expenses arising out of the Client’s own negligence, misconduct, or failure to disclose relevant medical information or to follow reasonable safety instructions. This provision does not apply to the Released Parties’ own gross negligence or willful misconduct.

7. EMERGENCY CARE CONSENT

In the event of an apparent emergency, the Client consents to the Coach summoning local emergency medical services. The Client understands that the Coach is not a medical provider, does not provide medical care, and that any cost of emergency or medical treatment is the Client’s responsibility.

8. GOVERNING LAW

This Waiver is governed by Texas law. Any dispute will be handled in the competent state or federal courts in Travis County, Texas, except where the Client has mandatory, non-waivable rights or forum protections in another jurisdiction. If any provision is unenforceable, it will be limited only as necessary and the remainder will continue in effect.

9. ACKNOWLEDGMENT AND SIGNATURE

By signing below, the Client confirms that the Client:

- Has read and understands this entire Waiver.
- Participates voluntarily and assumes the inherent risks of training.
- Will disclose relevant medical conditions and follow reasonable safety instructions.
- Agrees to the release of liability set out above, to the extent permitted by law.
- Understands that electronic signatures are valid as originals.

SIGNATURE

Client Name

Client Signature

Date

Coach Name

Cristy Sim

Coach Signature

Date
